

**DISPOSITION OF CHARGES**

PD 468-142A (Rev. 1-06)

CASE NO.

2022-27678 (C-031787)

BOOK & PAGE NO.

Page 1 of 2

PERSONNEL ORDER NO.

SPECIFICATIONS AGAINST

RANK/SURNAME

FIRST

M.I.

Police Office Gonzalez,

John

COMMAND

123 Precinct

SHIELD NO.

14229

TAX REGISTRY NO.

936681

DATE APPOINTED

January 10, 2005

RANK/NAME OF COMPLAINANT

Deputy Chief Prosecutor Andre Applewhite

COMMAND

CCRB -Administrative Prosecution Unit

DATE OF CHARGES

January 11, 2023

DATE TRIAL COMMENCED

February 5, 2025

DATE TRIAL CONCLUDED

February 5, 2025

TRIAL COMMISSIONER

Honorable Jeff S. Adler

SPECIFICATIONS	DISPOSITION	RECOMMENDED PENALTY	
		PLEA ☐	TRIAL ☒
1. Police Officer John Gonzalez, on or about October 15, 2021, at approximately 2147 hours, while assigned to the 123 Precinct and on duty, in the vicinity of Hylan Boulevard & Sharrott Avenue, Richmond County, wrongfully used force, in that PO Gonzalez struck [the complainant] with a police vehicle without police necessity.	NOT GUILTY	It is recommended that Respondent be found Not Guilty.	
2. Police Officer John Gonzalez, on or about October 15, 2021, at approximately 2147 hours, while assigned to the 123 Precinct and on duty, in the vicinity of Hylan Boulevard & Sharrott Avenue, Richmond County, wrongfully used force, in that PO Gonzalez struck an individual with a police vehicle without police necessity.	NOT GUILTY		

Reviewed by Deputy Commissioner of Trials

15/ Rosmarie Maldonado ^{By} Asst 3/10/25
DEPUTY COMMISSIONER DATE

Police Commissioner's Approval:

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Jesse Josen
POLICE COMMISSIONER

4/24/25
DATE

**DISPOSITION OF CHARGES**

PD 468-142A (Rev. 1-06)

CASE NO.
2022-27678 (C-031787)
BOOK & PAGE NO.
Page 2 of 2
PERSONNEL ORDER NO.

SPECIFICATIONS AGAINST RANK/SURNAME		FIRST	M.I.	COMMAND
Police Office Gonzalez,		John		123 Precinct
SHIELD NO.	TAX REGISTRY NO.		DATE APPOINTED	
14229	936681		January 10, 2005	
RANK/NAME OF COMPLAINANT				COMMAND
Deputy Chief Prosecutor Andre Applewhite				CCRB -Administrative Prosecution Unit
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
January 11, 2023		February 5, 2025		February 5, 2025
TRIAL COMMISSIONER				
Honorable Jeff S. Adler				

SPECIFICATIONS	DISPOSITION	RECOMMENDED PENALTY	
		PLEA ☐	TRIAL ☒
3. Police Officer John Gonzalez, on or about October 15, 2021, at approximately 2147 hours, while assigned to the 123 Precinct and on duty, in the vicinity of Hylan Boulevard & Sharrott Avenue, Richmond County, abused his authority as a member of the New York City Police Department, in that PO Gonzalez damaged [the complainant's] property without sufficient legal authority.	NOT GUILTY	See Page 1.	

Reviewed by Deputy Commissioner of Trials

By AES
1st Rosmarie Maldonado 3/10/25
DEPUTY COMMISSIONER DATE

Police Commissioner's Approval:

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Jesse Jese
POLICE COMMISSIONER

4/24/25
DATE



POLICE DEPARTMENT

March 10, 2025

-----X
In the Matter of the Charges and Specifications :

- against - :

Police Officer John Gonzalez :

Tax Registry No. 936681 :

123 Precinct :

Case No.

2022-27678

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB:

Deanna Everett-Johnson, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent:

Michael Martinez, Esq.
Worth, London, & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer John Gonzalez, on or about October 15, 2021, at approximately 2147 hours, while assigned to the 123 Precinct and on duty, in the vicinity of Hylan Boulevard & Sharrott Avenue, Richmond County, wrongfully used force, in that PO Gonzalez struck [the complainant] with a police vehicle without police necessity.

P.G. 221-02, Page 2, Prohibitions 11 & 12

USE OF FORCE

2. Police Officer John Gonzalez, on or about October 15, 2021, at approximately 2147 hours, while assigned to the 123 Precinct and on duty, in the vicinity of Hylan Boulevard & Sharrott Avenue, Richmond County, wrongfully used force, in that PO Gonzalez struck an individual with a police vehicle without police necessity.

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USE OF FORCE

3. Police Officer John Gonzalez, on or about October 15, 2021, at approximately 2147 hours, while assigned to the 123 Precinct and on duty, in the vicinity of Hylan Boulevard & Sharrott Avenue, Richmond County, abused his authority as a member of the New York City Police Department, in that PO Gonzalez damaged [the complainant's] property without sufficient legal authority.

A.G. 304-06, Page 1, Para 1

PROHIBITED CONDUCT

P.G. 200-02

MISSION, VISION AND
VALUES OF NYPD

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on February 5, 2025. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB introduced into evidence the hearsay statement of the complainant, as well as Body-Worn Camera footage of the incident. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty.

ANALYSIS

On the evening of October 15, 2021, Respondent was standing beside his parked RMP in Richmond County when he observed two motorcycles speed past him. One of the motorcycles did not have a license plate, and so Respondent, who was by himself, entered his RMP and pursued that vehicle as it proceeded toward Hylan Boulevard. The motorcycle was being operated by an individual (“the complainant”), and there was a female rear passenger as well. It is alleged that several minutes later, Respondent wrongfully used force in that he intentionally struck the complainant and the passenger with his RMP, and that he damaged the motorcycle without sufficient legal authority to do so. Respondent maintains that he did not deliberately strike the motorcycle, and suggests that the motorcycle may have fallen to the ground as it attempted a U-turn maneuver through a narrow space.

The complainant, who has a pending civil lawsuit against Respondent in connection with this matter, did not appear to testify at trial. Instead, the CCRB introduced into evidence a recording of a telephone interview conducted with the complainant on October 25, 2021, along with the accompanying transcript. (CCRB Exs. 1 & 1A) It is well-settled that hearsay evidence is admissible in administrative proceedings, and may form the sole basis for a finding of fact. The hearsay, however, must be carefully evaluated to determine whether it is sufficiently reliable. It is preferable to have testimony from a live witness, where opposing counsel has the opportunity to cross examine, and the court can observe witness demeanor. In the absence of live testimony from the complainant here, this tribunal carefully considered his prior statement, in conjunction with the other evidence presented at trial.

In his statement, the complainant admitted that the motorcycle he was operating was neither registered nor insured, had no license plate affixed, and his driver’s license was

suspended. Nevertheless, he took the bike out for a “quick joyride” with a female passenger, who was seated behind him, along with a friend who was riding a separate motorcycle. As they were passing Respondent’s parked police car, the complainant’s friend, who was riding ahead, revved his engine and sped off. Respondent started chasing the complainant, who also sped up to approximately 45-50 mph. The complainant stated that he made a right turn onto Hylan Boulevard, noticed that Respondent had turned his lights on, and the pursuit continued for several blocks to the intersection of Sharrott Avenue. The complainant, who was in the far right lane, came to a stop. The police car approached in the left lane, and another vehicle was stopped at the light between them. Respondent screamed over the microphone to the complainant, telling him he could either receive a ticket or get arrested. The complainant stated that he decided he would try to “lose the cop.” (CCRB Ex. 1A at 7, 11, 13, 16-20, 25-29, 33-34, 40)

In an effort to get away, the complainant turned his motorcycle around, and slowly tried to pass through the small gap between the police car and the other vehicle, in order to escape in the opposite direction. According to the complainant, he released his clutch to allow his motorcycle to roll between the two vehicles. As he passed between them, the police car slowly reversed into him, tipping the motorcycle over. The female passenger was able to jump off the motorcycle, but the complainant’s right leg was pinned between the bumper of the RMP and the motorcycle, and his left leg was stuck underneath the bike. Respondent placed the complainant in handcuffs. According to the complainant, his back and both of his legs were injured from the collision, and the engine of his motorcycle was cracked. After his arraignment, the complainant went to the hospital, where X-rays were taken and he was told his bones were intact. (CCRB Ex. 1A at 5, 35-38, 43-44, 46, 49-51, 55-56, 65, 73-74)

Video footage from Respondent's Body-Worn Camera ("BWC") does not capture whether there was any impact between the RMP and the motorcycle while it was still upright, nor does it show how the motorcycle wound up on the ground with the complainant pinned beneath it. The footage does show Respondent turning his steering wheel and angling his RMP to the right and coming to a stop at the intersection. (CCRB Ex. 8 at 0:48) A second later, Respondent appears to reverse the RMP a few feet, come to a stop, move slightly forward, and put the car in park. As Respondent emerges from his vehicle, the complainant can be heard screaming loudly in pain, with his motorcycle on top of him. The female passenger is standing safely off to the side. Respondent handcuffs the complainant, then lifts the motorcycle and helps the complainant to his feet. Photographs in evidence show damage to the rear of the RMP (CCRB Ex. 4), as well as to the motorcycle (CCRB Ex. 5). Additional photographs show some bruising in the area of the complainant's feet. (CCRB Ex. 6) Copies of two Motor Vehicle Accident Reports also were admitted. (CCRB Ex. 2, Resp. Ex. A)

Respondent testified that he initially followed the motorcycle from a distance of about five-to-six car lengths behind. He observed the motorcycle cross over a double-yellow line into the oncoming traffic lane. Respondent pulled his RMP parallel to the motorcycle and signaled him to pull over, but the complainant sped off, driving approximately 50-55 miles per hour and running several red lights. Rather than speed after the complainant, Respondent chose to pull back and follow him from a safe distance. (Tr. 30-32, 44-45)

At the intersection of Hylan and Sharrott, Respondent saw the complainant "hit his brakes" while traveling in the far-right bike lane. Respondent testified that he believed the complainant was about to make a right turn, so Respondent accelerated into the intersection, around a car in the right lane that was stopped at the light, in order to block the motorcycle from

making the turn. Respondent stopped his RMP, looked around, but could not locate the motorcycle, and so he assumed the complainant had made a U-turn and was proceeding in the direction from which they had just come. Respondent testified that he began to reverse his RMP with the intention of turning his vehicle around as well, when he immediately heard a scream behind him. He stopped reversing, moved the RMP slightly forward, then put the car in park. Respondent exited his vehicle, and observed the motorcycle on the ground toward the rear passenger side of the RMP. The complainant was trapped under the motorcycle, and the female passenger was standing on the sidewalk. Respondent placed the complainant in handcuffs and lifted the motorcycle off him. The complainant declined the offer of an ambulance, and was transported to the stationhouse for arrest processing. There was damage to the RMP's rear bumper on the passenger side, and the motorcycle had a gas leak and could not be started. (Tr. 33-38, 46-50, 52-53, 64-68, 75-77)

Respondent testified that he did not feel any impact between his RMP and the motorcycle as he was backing up, and did not believe he struck the bike while it was upright and knocked it to the ground. He suggested that when the complainant made the tight U-turn he may have "wiped out" before the RMP backed up. Respondent acknowledged that he probably backed over the motorcycle while it was on the ground and out of his view, but he insisted he did not intentionally strike the complainant or his motorcycle with the RMP. (Tr. 38-40, 51, 60-62)

Specification 1 alleges that Respondent wrongfully used force by backing his RMP into the complainant, while Specification 2 alleges the same misconduct with respect to the unnamed motorcycle passenger. It is the position of the CCRB that Respondent intentionally reversed his RMP into the complainant's motorcycle, thereby causing it to tip over. Respondent, in contrast, insists that he did not deliberately strike the motorcycle with his vehicle.

It is unclear from the evidence how exactly the motorcycle wound up on the ground. The video footage does not capture how it occurred. The complainant claimed that it was due to Respondent deliberately backing his RMP into the motorcycle, but I am not persuaded as to the reliability of his hearsay narrative. The complainant did not appear at trial, and so the defense did not have the chance to question him about his suspended license, the lack of a license plate, as well as his open warrant, and how those factors motivated his actions that day, including his decision to flee the police. There was no opportunity to confront the complainant about the details of how precisely his motorcycle fell to the ground, and whether the tight U-turn he made affected his ability to maintain control of his bike. The complainant did not have to answer questions about whether he had an interest in fabricating his account in order to shift responsibility for what occurred onto Respondent, who currently is the subject of a lawsuit filed by the complainant.

Additionally, the BWC footage showing the inside of the RMP does not depict the type of jolt one might have expected to see if Respondent had just knocked down an upright motorcycle. Also, the footage shows the female passenger standing safely off to the side, away from the motorcycle, with no indication that she had just been a passenger on an upright motorcycle that was struck by another vehicle.

Respondent, meanwhile, testified in a detailed, credible manner about what transpired. He maintained that he did not believe he struck the upright motorcycle, causing it to fall to the ground. This was not a version of events that Respondent told, for the first time, at trial. Rather, in the immediate aftermath of the incident, Respondent informed his supervisor that he did not strike the motorcycle while it was upright, and that the complainant must have fallen when he tried to make the U-turn. (CCRB Ex. 8 at 25:06, 26:49) That same account appears in the

narrative portion of the official Police Accident Report as well. (Resp. Ex. A) Respondent acknowledged that as he reversed his RMP, he may have made contact with the bike *after* it already was on the ground.

The CCRB has the burden of proving, by a preponderance of the credible evidence, that Respondent wrongfully used force by intentionally striking the complainant and the passenger on the motorcycle. Based on the totality of the evidence presented, including the hearsay account provided by the complainant, I am not persuaded that Respondent intentionally collided with the complainant. Although it is clear that a motor vehicle accident occurred, and that there was damage to the RMP and motorcycle, not all such accidents rise to the level of misconduct. Here, there was insufficient proof to establish that Respondent wrongfully used force against the complainant and the female passenger by reversing his RMP into the upright motorcycle. The CCRB has failed to meet its burden, and I find Respondent Not Guilty of Specifications 1 and 2.

Specification 3 alleges that Respondent wrongfully damaged the complainant's motorcycle. It is undisputed that there was damage to the motorcycle: aside from the photographs in evidence, the complainant stated that the engine was cracked, and Respondent conceded that the gas tank was leaking, and the motorcycle could not be restarted.

At issue is whether the damage was the result of misconduct on the part of Respondent. In his hearsay statement, the complainant suggested that Respondent deliberately backed into the motorcycle, while Respondent, at trial, denied any such intent, credibly explaining that when he lost sight of the motorcycle, he began reversing his RMP with the intention of turning around.

As discussed above, the evidence was unclear as to the exact sequence of events leading to the motorcycle being damaged. Again, not all motor vehicle accidents resulting in damage are the result of misconduct, and under these specific circumstances, the evidence did not establish

that the damage to the motorcycle was due to misconduct on the part of Respondent. The CCRB has failed to meet its burden of proving, by a preponderance of the evidence, that Respondent abused his authority as a member of the Department by wrongfully damaging the complainant's motorcycle. Accordingly, I find Respondent Not Guilty of Specification 3.

Respectfully submitted,



Jeff S. Adler

Assistant Deputy Commissioner Trials

APPROVED

APR 24 2025



JESSICA S. TISCH
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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MOHAMMAD KHALID
INTERIM CHAIR

Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

March 10, 2025

Police Officer John Gonzalez
Disciplinary Case No. 2022-27678

Commissioner Tisch:

The above-referenced case was tried on February 5, 2025, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter “CCRB”), and pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department.

Respondent, Police Officer John Gonzalez, was charged with the following:

CHARGES AND SPECIFICATIONS

1. Police Officer John Gonzalez, on or about October 15, 2021, at approximately 2147 hours, while assigned to the 123 Precinct and on duty, in the vicinity of Hylan Boulevard & Sharrott Avenue, Richmond County, wrongfully used force, in that PO Gonzalez struck [the complainant] with a police vehicle without police necessity.

P.G. 221-02, Page 2, Prohibitions 11 & 12

USE OF FORCE

2. Police Officer John Gonzalez, on or about October 15, 2021, at approximately 2147 hours, while assigned to the 123 Precinct and on duty, in the vicinity of Hylan Boulevard & Sharrott Avenue, Richmond County, wrongfully used force, in that PO Gonzalez struck an individual with a police vehicle without police necessity.

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3. Police Officer John Gonzalez, on or about October 15, 2021, at approximately 2147 hours, while assigned to the 123 Precinct and on duty, in the vicinity of Hylan Boulevard & Sharrott Avenue, Richmond County, abused his authority as a member of the New York City Police Department, in that PO Gonzalez damaged [the complainant’s] property without sufficient legal authority.

CCRB has reviewed the draft decision of Assistant Deputy Commissioner - Trials Jeffrey S. Adler (hereinafter, “ADCT”), dated February 28, 2025. We respectfully submit the following comments regarding the draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

The Court found Respondent Gonzalez not guilty of all charges and specifications as alleged in the charging document. It is respectfully requested that you reject ADCT Adler’s findings, find the Respondent guilty of Specifications One (1), two (2) and three (3) of the charging document and accept CCRB’s recommended presumptive penalties 30 Suspension Days + 30 Penalty Days + Dismissal Probation and 10 penalty days for charge all to run consecutively.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

Exhibits

CCRB EXHIBIT LIST

1. Complainant, § 87(2)(b) CCRB Interview, October 25, 2021
 - 1a. Complainant, § 87(2)(b) CCRB Interview, October 25, 2021 (Transcript).
2. NYPD Motor Vehicle Accident Report, Endorsement date: 11/1/2021
3. PO Gonzalez NYPD Activity Log Report, October 15, 2021
4. Photographs of NYPD Motor Vehicle
5. Photographs of Complainant’s Motor Vehicle
6. Photographs of Complainant’s reported injuries
7. Diagram of Complainant's Movements
8. PO Gonzalez Body Worn Camera footage

Respondent’s Exhibits

None

Testimony

Officer John Gonzalez—

Respondent testified that on October 15, 2021, he worked as the auxiliary coordinator of the 123 precinct in Staten Island. He was parked at a bank on Huguenot Avenue and noticed a pair of motorcycles pass him, both with passengers on the rear and one of which did not have a license plate affixed to the rear. (Tr. 26-28). The motorcycles travelled at about fifteen (15) miles per hour. Respondent testified that he pursued the motorcycle to effectuate a stop for the license plate and that the drivers evaded the stop and proceeded to travel at 50-55 miles per hour. (Tr. 31). Respondent testified that after the motorist (hereinafter Complainant § 87(2)(b)) ran a red light and Respondent's multiple failed attempts to pull over § 87(2)(b) he chose to stop pursuing him per NYPD non-pursuit policy. (Tr. 32, 45). However, Respondent testified that he continued to follow § 87(2)(b). He testified that at one point he lost sight of him and that he tried "backing up" to find him, because he thought § 87(2)(b) had made a U-turn and traveled back in the opposite direction. (Tr. 45, 46, 50). However, Respondent acknowledged that he did not see § 87(2)(b) make a U-turn and that when he reversed to go back in the opposite direction, he heard a scream, immediately. (Tr. 50). When asked on cross if he heard the scream as a result of backing into the vehicle, he tried to testify that it may have been that he backed "over" the vehicle, because it was "behind his car on the ground." (Tr. 51, Line 4). Yet, he was impeached on his statement to the CCRB investigator, which was that he had backed "into the motorcycle." (Tr. 51, Line 20).

Respondent testified that he exited the police vehicle and observed § 87(2)(b) laying on the ground on his left side "trapped" with the motorcycle a top his left leg, sandwiched between right leg and that § 87(2)(b) and the motorcycle were located at or near the passenger side rear bumper. The passenger was on the sidewalk. (Tr. 36, 52). Respondent testified that he observed that the police vehicle sustained damage to the rear passenger side bumper and that it was "popped off." (Tr. 53). Additionally, the CV's motorcycle sustained damage, in that, the gas tank was leaking, and the vehicle would not start. (Tr. 53-54).¹

Respondent acknowledged that he was not familiar with § 87(2)(b) prior to this incident and that to the best of his knowledge – at the time of the incident-the CV had not committed any crime/s. (Tr. 54). Respondent also conceded that he hit § 87(2)(b) with his motor vehicle. (Tr. 62, Line 9-13). The transcript reads as follows:

Q. Do you recall, Officer Gonzalez, being asked
2 this question and providing this answer, page 36,
3 starting at line 13.
4 "Ms. Mangano: And during, while backing
5 up, you hit him immediately because he was out of your
6 sight?" Your answer, "Correct."
7 Do you recall being asked that question
8 and providing that answer?
9 MR. MARTINEZ: Objection. As to it lacks
10 context. There's a question right before that.
11 It flushes out the --
12 COMMISSIONER ADLER: Well, why don't we then
13 just err on the side of caution. If you don't
14 mind, Ms. Everett-Johnson, can you reread this,
15 but first read the question and answer that
16 preceded it --
17 MS. EVERETT-JOHNSON: Sure.

¹ Photographs of damage to the police vehicle and the CV vehicle is in evidence as CCRB Ex.'s four (4) and five (5), respectively.

18 COMMISSIONER ADLER: -- and then re-ask again.
19 Thank you.
20 Q. "Ms. Mangano: And to just clarify, for the
21 record, the purpose of you backing up is because you
22 lost sight of the vehicle, as you mentioned, and you
23 were backing up to continue to try to locate the
24 vehicle?"
25 "Officer Gonzalez: Correct."
1 "And during, while backing up, you hit
2 him immediately because he was out of your sight?"
3 "Officer Gonzalez: Correct."
4 COMMISSIONER ADLER: You gave those answers
5 to those questions?
6 OFFICER GONZALEZ: That sounds correct.
7 COMMISSIONER ADLER: Okay.
8 BY MS. EVERETT-JOHNSON:
9 Q. So now, do you recall acknowledging that you
10 hit § 87(2)(b)
11 A. Yes.
12 Q. -- with your vehicle?
13 A. Yes.

RESPONDENT IS GUILTY OF SPECIFICATIONS ONE (1) and TWO (2)

We disagree with the Tribunal's finding that the Respondent did not wrongfully use force in striking § 87(2)(b) with his police vehicle. The ADCT stated: "Although it is clear that a motor vehicle accident occurred, and that there was damage to the RMP and motorcycle, not all such accidents rise to the level of misconduct. Here, there was insufficient proof to establish that Respondent wrongfully used force against the complainant and the female passenger by reversing his RMP into the upright motorcycle." (Decision at 8). However, given § 87(2)(b) testimony that the respondent intentionally backed into him and "put the car in reverse and rammed it into me" (CCRB Ex. 1a, Page 5 Line 12 and Page 44, Line 16); the short distance between § 87(2)(b) fallen motorcycle and the police car, the damage to the police vehicle, and the Police Accident Report (CCRB Ex. 2) suggest otherwise. Additionally, Police Officer Gonzalez's decision to back up his vehicle without looking behind him while the motorcycle's engine was audible and without definite knowledge of § 87(2)(b) location was unsafe. The decision was also unnecessary because he had testified that he had stopped pursuing § 87(2)(b) so there was no reason for him to turn around and continue following him. It is also unlikely that § 87(2)(b) own actions – his "failed U-Turn," as referenced in the accident, caused § 87(2)(b) bike to tip over causing him to be "trapped."

Based on the foregoing, Officer Gonzalez is Guilty of Specifications One (1) and (2) and the CCRB recommends the penalty 30 Suspension Days + 30 Penalty Days + Dismissal Probation.

RESPONDENT IS GUILTY OF SPECIFICATION THREE

We disagree with the Tribunal's finding that Respondent is not guilty of damage to property. ADCT assessed that damage to CV's property had to be the "the result of misconduct on the part of Respondent." (Decision at 9) and that "not all motor vehicle accidents resulting in damage are the result of misconduct, and under these specific circumstances, the evidence did not establish that the damage to the motorcycle was due to misconduct on the part of Respondent. (Id.)

First, CCRB submits that the standard set forth in the New York City Police Department Disciplinary Systems Penalty Guide delineates damage to property as Improper *or* Wrongful. (NYPD Disciplinary Matrix, Page 29). This means that the conduct that led to the damaged property does not necessarily need to be the result of misconduct from the respondent, but it could also be attributed to the service members' irresponsible acts. The ADCT acknowledged that it is "undisputed that there was damage to the motorcycle: aside from the photographs in evidence, the complainant stated that the engine was cracked, and Respondent conceded that the gas tank was leaking, and the motorcycle could not be restarted." (Decision at 8). Accordingly, based on the evidence that Respondent acknowledged hitting CV's vehicle corroborated with CV's testimony and photographic evidence (CCRB Exs. 4 and 5), Respondent is guilty of specification three (3), improper/wrongful damage to property. The presumptive penalty for damage to a person's property ten days.

In conclusion, the CCRB asks you to carefully review the record and the evidence, which strongly supports a finding of guilt on the charged Specifications. Based on the presented arguments above, Officer John Gonzalez is Guilty of the Specifications One (1), Two (2) and Three (3) and CCRB recommends the presumptive penalties 30 Suspension Days + 30 Penalty Days + Dismissal Probation and 10 penalty days for charge all to run consecutively.

Respectfully submitted,



Deanna Everett-Johnson, Esq.

APU Prosecutor

NYC Civilian Complaint Review Board

cc: Mike Martinez, Esq.
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